

Court No. - 3

Case :- WRIT - C No. - 21159 of 2022

Petitioner :- Naththu Lal

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Rajesh Kumar Verma

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Surendra Singh-I,J.

Heard Sri Rajesh Kumar Verma, learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Narendra Kumar Tiwari, learned counsel for the respondent Nos. 4 and 5.

This writ petition has been filed praying for the following relief:

"I. Issue a writ, order or direction in the nature of certiorari to quash the impugned recovery citation undated a sum of Rs. 2,74,410/- issued by the respondent no. 3 and demand notice dated 05-02-2020 a sum of Rs. 2,74,075/- issued by respondent no. 4.

II. Issue a writ, order or direction in the nature of mandamus directing to the respondents to not harass the petitioner or do not take any further action against the petitioner till the pendency of the present writ petition."

Sri Narendra Kumar Tiwari, learned counsel for the respondent Nos. 4 & 5, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his objection under **Para 6.8 of U.P. Electricity Supply Code, 2005** before the respondent No. 4, Executive Engineer, Purvanchal Vidyut Vitran Nigam Limited, Vidyut Vitran Khan III Khaga Fatehpur, District Fatehpur, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No. 4 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 17.8.2022

Brijesh Maurya